

estate of settlor. Rejection of a creditor claim is a precondition to bringing suit against the estate. Prob.C. § 9351.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.2.1.

18. S-PR-0013949 In Re the Estate of Fagan, Merlin L. Jr.

Petition to administer estate is recommended for approval as prayed.

19. S-PR-0014061 In Re the Estate of Triolo, Kristin Deann

Missing notice of hearing and service of notice of hearing for amended spousal property petition. Amended petition requires complete re-noticing. C.R.C. 7.53.

Missing copy of the will attached to the petition. See ¶ 4c. ¶ 11 implies the will is a pourover will; if all assets pass to decedent's living trust, the will precludes spousal property relief as no assets pass from the estate to the surviving spouse.

Missing Attachment 7 (see ¶ 7), the facts supporting the requested relief.

Clarification is needed: petitioner now requests only relief under ¶¶ 1a & 7a—determination of decedent's separate and community interests passing to survivor. Petitioner does not pray for any confirmation of his community interest (see unused ¶¶ 1b & 7b). Attachment 7a must include only decedent's community property and may not include any property of survivor; as filed, Attachment 7a refers only to "decedent's interest" without identifying any separate or community interest in the listed property. Note that any community interest of decedent is limited to no more than an undivided 1/2 interest.

20. S-PR-0014147 In Re the Estate of Williams, Roy Bobby

Missing relationship(s) of persons listed in ¶ 9 to decedent.

Attachment 7 is insufficient to establish that the subject property is community property. Petitioner admits the property was obtained as a separate asset and record title remains in decedent individually. The form of title presumption of Evid.C. § 662 controls over any community presumption of Fam.C. § 706, although both are rebuttable. In re Brace (2020) 9 Cal.5th 903, 934; Estate of Wall (2021) 68 Cal.App.5th 168. Here, petitioner admits the form of title is decedent's separate property. Petitioner offers insufficient evidence of transmutation of title: separate property may be pledged as collateral for a community indebtedness without any transmutation. Petitioner implies the marital community should be entitled to Moore-Marsden credits, but offers no proposed calculation of such credits.

Attachment 7a fails to describe only decedent's separate and community interests which petitioner claims are property passing to her. There is no request for the companion

relief of confirming petitioner's community property interests (see unused ¶¶ 1b & 7b). Note that any community interest of decedent is limited to no more than an undivided 1/2 interest.

21. S-PR-0014148 In Re the Estate of Mathew, Gary Michael

Missing notice of hearing for petition to administer estate. Missing service of notice of hearing. Missing publication of notice of hearing.

Note: missing signed Duties form (D147). Clerk cannot issue letters until signed Duties form is filed.

22. S-PR-0014149 In Re the Estate of Osborne, Elizabeth

Missing sufficient notice of hearing. Notice as filed, served, and published relates only to an August 21, 2026, hearing which the court rescheduled. Petitioner was notified of the revised court date by an order filed June 5. Missing any notice, service, or publication for the rescheduled August 24 date.

23. S-PR-0014150 In Re the Des Jardin Fam Liv Trust

Petition to terminate subtrust is recommended for approval as prayed.

24. S-PR-0014151 In Re the Robert H. Fine Fam Trust

Petition to determine trust property is recommended for approval as prayed.

25. S-PR-0014152 In Re the Martinez Fam Trust

Appearance is required for hearing on petition to remove trustee and for other relief.

26. S-PR-0014153 In Re the Nakatani Fam Trust

Appearance is required for hearing on petition to remove trustee.

Missing sufficient notice of hearing for petition to remove trustee. Notice filed June 30 is for an August 21 hearing that was changed by the court. Petitioner was notified of the modified hearing date by order filed June 5. Missing notice of hearing for the August 24 hearing.